

Leave to Amend

“If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 863-864.) Here, the Court will provide Cross-Complainant with leave to amend because it cannot be said that the causes of action challenged are incapable of amendment.

Ruling on the Demurrer

For the reasons stated above, Cross-Defendant’s demurrer to the second (fraud), third (negligent misrepresentation), and fourth (fraud-suppression of fact) causes of action, is SUSTAINED WITH LEAVE TO AMEND. Cross-Complainant may file and serve an amended cross-complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, Rule 3.1320(g).) A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: COMPEL FURTHER VERIFIED RESPONSES CITY OF RICHMOND**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi (“Plaintiff”) filed a Motion to Compel Further Verified Responses on October 30, 2025 (the “Motion to Compel Further Responses”). The Motion to Compel Further Responses was set for hearing on March 2, 2026. The motion is opposed.

Background

Plaintiff seeks further responses to discovery requests propounded on defendant City of Richmond (the “City”), including, it appears, form interrogatories and one or more sets of requests for production of documents. However, the precise discovery requests and responses at issue are unclear based on the papers filed, including because Plaintiff failed to file a Separate Statement pursuant to the requirements of Rule 3.1345 of the California Rules of Court (“CRC”).

Analysis

As noted above, Plaintiff failed to file a Separate Statement in support of the Motion to Compel Further Responses. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5.

There are very specific requirements for the formatting and content of a Separate Statement. See CRC 3.1345(c) (“A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.”). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id.* at (c)(1)-(2). Attaching a meet and confer email or other correspondence to a motion does not satisfy

this requirement.

No Separate Statement in compliance with the requirements of CRC 3.1345 was ever filed by Plaintiff. For this reason alone, the motion is procedurally defective.

Even if not procedurally defective, the Court would deny the Motion to Compel Further Responses because Plaintiff failed to meet and confer in good faith—either in person, by telephone, or by videoconference—to resolve the discovery issues raised before filing this motion. See Declaration of Kevin D. Siegel filed February 18, 2026 (“Siegel Decl.”), ¶¶3-10. Plaintiff is admonished for such failure to meet and confer in good faith before resorting to filing a discovery motion with the Court. See Code Civ. Proc. § 2016.040 (“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”). In any event, it appears substantial progress was made through later meet and confer discussions. *Id.* at ¶12 *et seq.*

Sanctions

The moving party persisted in prosecuting the Motion to Compel Further Responses without substantial justification based upon procedurally defective moving papers and without good faith compliance with the statutorily required meet and confer having been made.

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court further finds that the moving party’s conduct constituted failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Code Civ. Proc. §§ 2030.300(b)(1) (a motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040) and 2031.310(b)(2) (a motion to compel further responses to document demand must be accompanied by a meet and confer declaration under Section 2016.040).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions (the “Sanctions”).

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is DENIED.
2. The **PARTIES ARE ORDERED TO APPEAR** to set a hearing date and schedule for further briefing regarding determination of the amount of Sanctions. The Court reserves jurisdiction regarding the determination and imposition of such Sanctions. If the City waives the imposition of Sanctions, it may notify all parties and the Court. In such event, no appearance shall be required unless Plaintiff otherwise gives notice of contesting the Court’s tentative ruling.
3. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: FOR TRIAL PREFERENCE (CCP 36)
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by Plaintiff Rassoul Malboubi for trial preference. For the reasons set forth, the motion for trial preference is **DENIED, WITHOUT PREJUDICE** as set forth below.

Background

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Rassoul Malboubi located on 24th Street in the City of Richmond. (First Am. Compl. ("FAC") ¶¶ 1-3.) The City has represented in prior pleadings that Mr. Lopez retired as a City planner on August 16, 2025. Plaintiff filed his FAC on February 2, 2026. For convenience, the Court refers to the City and Mr. Lopez collectively as the "City Defendants."

In his FAC, Mr. Malboubi alleges multiple causes of action against the City Defendants, including a petition for writ of mandate and declaratory relief, abuse of discretion, misapplication of the municipal code, failure to perform a mandatory duty, a separate cause of action for declaratory relief, and injunctive relief. Plaintiff has filed a motion for trial preference under Code of Civil Procedure section 36(a) based on his age and health conditions, or alternatively, for discretionary trial preference under Code of Civil Procedure section 36(e). Defendants oppose the motion.

Legal Standards for Ruling on Motion for Trial Preference

Code of Civil Procedure section 36(a) provides that if a party is over 70 years old, the party may request a trial preference "which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." If the conditions of Code of Civil Procedure section 36(a) are met, granting a trial preference is mandatory. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 533; *Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1204; *Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 692.) The cases recognize that Code of Civil Procedure section 36 "was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted." (*Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 532.) (See also *Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515 [quoting *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88-89 that based on the legislative history, " 'the purpose of subdivision (a) to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.' [Citation omitted.]".])

"Mere inconvenience to the court or to other litigants is irrelevant. [Citation omitted.] Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36. The trial court has no power to balance the differing interests of opposing litigants in applying the provision.